Plaintiff's law firm's blanket position that their clients do not sign these authorizations should be reviewed. By placing her mental and physical conditions at issue, Plaintiff has waived her right to privacy as to those conditions. Defendant is entitled to discovery related to those conditions and is not required to solely rely on Plaintiff's responses.

While the court cannot compel Plaintiff to sign an authorization for release of her records, a court can compel production of records by Plaintiff to include medical records in her possession or those which she is capable of acquiring. Likewise, a court can compel a non-party's compliance with a subpoena duces tecum.

COLEMAN v. SELECT PORTFOLIO SERVICING, INC., ET AL.
Case No. CU26-00897

Demurrer

TENTATIVE RULING

Defendant Wells Fargo Bank's demurrer to Plaintiff's complaint is SUSTAINED WITH LEAVE TO AMEND IN PART and WITHOUT LEAVE TO AMEND IN PART.

The court takes judicial notice of the effects of the deeds of trust recorded on October 29, 2004 and August 31, 2005, the corporate assignment of deed of trust recorded on June 12, 2019, and the corporate assignment of deed of trust recorded on December 7, 2023. (RJN, Exhs. 2-3, 5, 7.) A court may take judicial notice of recorded instruments and their effect. (*Poseidon Dev., Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117-1118.)

Defendant's demurrer to the first cause of action to quiet title is SUSTAINED WITHOUT LEAVE TO AMEND. A quiet title action must allege that a defendant may be asserting a claim that is adverse to the claim of the plaintiff. (Code Civ. Proc. § 761.020(c); *Wolfe v. Lipsy* (1985) 163 Cal.App.3d 633, 638.) Although Plaintiff alleged that Defendant Wells Fargo only assigned the work of servicing the loan to Defendant Select Portfolio Servicing (Complaint , § IV(3)), this allegation is contradicted by the corporate assignment of deed of trust recorded on June 12, 2019 establishing that Defendant Wells Fargo assigned all of its beneficial interest in the deed of trust to Goldman Sachs Mortgage Company (RJN, Exh. 5). A judicially noticed fact trumps a conflicting allegation in a complaint. (*Williams v. S. Cal. Gas Co.* (2009) 176 Cal.App.4th 591, 598.)

Defendant's demurrer to the fourth cause of action for "unlawful assignment" is SUSTAINED WITHOUT LEAVE TO AMEND. The allegation that the 2023 corporate assignment of deed of trust was recorded improperly because Defendant Select Portfolio Servicing was not assigned the beneficial interest in the deed of trust (Complaint, ¶ V(4)(1)) is contradicted by the recorded assignments (RJN, Exhs. 5, 7). The 2019 assignment establishes that Defendant Wells Fargo assigned its interest in the deed of trust to Goldman Sachs. (RJN, Exh. 5.) The 2023 assignment establishes that Defendant Select Portfolio Servicing assigned Goldman Sachs' interest in the deed of trust as "attorney in fact" for Goldman Sachs. (RJN, Exh. 7.)

It does not appear reasonably possible for Plaintiff to be able to cure the defects in these causes of action by amendment and Plaintiff has made no effort to meet her burden of explaining in what manner she proposes to amend the complaint or how the proposed amendment would change the legal effect of the causes of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

The demurrer to the remaining causes of action for fraud and financial elder abuse is SUSTAINED WITH LEAVE TO AMEND.

Both causes of action are based on the alleged fraud committed in the origination of a loan and the recording of a deed of trust securing that loan in 2007. (Complaint, ¶¶ IV(2), V(1)-V(3).) The statute of limitations for fraud is three years. (Code Civ. Proc. § 338(d).) The statute of limitations for a claim of financial elder abuse is four years. (Welf. & Inst. Code § 15657.7.) Because the running of the applicable statutes of limitation for these causes of action appear "clearly and affirmatively" from Plaintiff's allegations (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881), Plaintiff must allege with specificity the factual basis for any exception to, or tolling of, the statutes of limitation, including delayed discovery and equitable tolling. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641). Plaintiff did not do so.

Additionally, Plaintiff's fraud and elder abuse causes of action have not been pleaded with adequate specificity. (*Comm. on Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 216-217; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) In a fraud action against a corporation, the requirement of specificity demands that a plaintiff allege the names of the persons who made the allegedly fraudulent representations, their authority to speak on behalf of the corporation, to whom they made the representations, what they said or wrote, and when it was said or written. (*Tarmann v. State Farms Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157; *Archuleta v. Grand Lodge of Int'l Ass'n of Machinists and Aerospace Workers* (1968) 262 Cal.App.2d 202, 208-209.) Plaintiff does not allege any misrepresentations made by any agent or employee for Defendant Wells Fargo or its predecessor in interest, the authority of the speaker to speak on behalf of Defendant, to whom any misrepresentation was made, what was actually said or written, or when it was said or written. In fact, the only "misrepresentation" alleged is the line in the settlement statement for the loan indicating disbursement of loan funds to pay off "nonexistent liens" that no longer existed because the original mortgage encumbering the property had been fully paid off in 2001. (Complaint, ¶¶ IV(1)-IV(2).) But, deeds of trust were recorded against the property for new loans issued in 2004 and 2005 and it was this new indebtedness that was paid off by the 2007 loan, contradicting any allege falsity in the representation. (RJN, Exhs. 2-3; Complaint, Exh. E.) Plaintiff's elder abuse claim is based on the same insufficient fraud allegations.

A strong policy exists that a Plaintiff should be permitted to amend her complaint – especially an initial pleading - if there is any possibility that a defect can be cured. (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091.) Plaintiff shall file any first amended complaint consistent with this ruling within 10 days of the hearing. (Cal. Rules of Court, rule 3.1320(g).)

On its own motion the court **vacates** Plaintiff's Amended Motion for Leave to File First Amended Complaint currently calendared for October 14, 2026.

JASPER WILLIE ANDERSON v. HAMPTON INN VALLEJO, SAK HOSPITALITY, INC. Case No. FCS059565

Motion for Leave to File First Amended Complaint.
Motion for Appointment of Discovery Referee

TENTATIVE RULING:

Plaintiff's motion for leave to file a first-amended complaint as to SAK HOSPITALITY d/b/a HAMPTON INN is GRANTED conditioned upon the reopening of discovery deadlines and the currently scheduled trial being vacated and reset. Plaintiff's motion to add a new Defendant, GENE PRICE, is DENIED as the statute of limitations from the February 15, 2021, alleged incident has passed and the identity of GENE PRICE has been known or knowable to Plaintiff.

The first amended complaint shall be filed and served in 10 court days. Responsive pleadings are due per Code of Civil Procedure.

Defendant's motion for the appointment of a discovery referee at Plaintiff's expense is GRANTED. Plaintiff's alleged conduct during his original deposition is the sole cause of the need for a discovery referee, despite Plaintiff's counsel's best efforts to intervene. The court has observed similar behavior to that cited by Plaintiff's counsel.

The parties shall meet and confer regarding the identity of a discovery referee in the next 20 court days and Plaintiff's counsel shall make financial arrangements with the referee in the next 30 court days. If the parties are unable to agree on a discovery referee, in 21 court days submit two names each to the court, include rates, CV, available dates to monitor the continued deposition and notify the judicial assistant for Department 8 of the submission so that the court is informed that a decision is needed.

All future set dates are vacated and the matter is continued for trial setting to October 15, 2026 at 8:30. Updated CMCs shall be filed which shall confirm completion of Plaintiff's deposition and identify 3 mutually agreeable jury trial dates in 2027.
